

ELIZABETH II



1985 CHAPTER xviii

An Act to empower Associated British Ports to construct works and to acquire lands; to confer further powers on A.B. Ports; and for other purposes. [26th June 1985]

WHEREAS—

(1) By the Transport Act 1981 and the Associated British Ports (Appointed Day and Designation of Holding Company) Order 1982 the British Transport Docks Board which were established by the Transport Act 1962 were reconstituted on 31st December 1982 under the name of Associated British Ports (in this Act referred to as “A.B. Ports”) and powers in relation to A.B. Ports were conferred on Associated British Ports Holdings Limited corresponding to the powers of a holding company over a wholly-owned subsidiary:

(2) It is the duty of A.B. Ports under the said Act of 1981 (inter alia) to provide, to such extent as it may think expedient, port facilities at its harbours and to have due regard to efficiency, economy and safety of operation as respects the services and facilities provided by it and its subsidiaries and A.B. Ports is empowered to operate its harbours:

(3) It is expedient that A.B. Ports should be empowered to construct the works authorised by this Act and to acquire the lands referred to in this Act:

(4) It is expedient that the other powers in this Act contained should be conferred upon A.B. Ports and that the other provisions in this Act contained should be enacted:

(5) A plan and sections showing the lines or situations and levels of the works to be constructed under the powers of this Act, and a plan of the lands authorised to be acquired or used by this Act, and a book of reference to such plan containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands have been deposited in the office of the Clerk of the Parliaments and in the Private Bill Office of the House of Commons and with the proper officer of the Devon County Council, which plan, sections and book of reference are respectively referred to in this Act as the deposited plan, the deposited sections and the deposited book of reference:

(6) The purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Short title. 1. This Act may be cited as the Associated British Ports Act 1985.

Interpretation. 2.—(1) In this Act, unless there be something in the subject or context repugnant to such construction, the several words and expressions to which meanings are assigned by the Acts wholly or partly incorporated herewith have in relation to the relative subject-matter the same respective meanings and—

“A.B. Ports” means Associated British Ports;

1847 c. 27. “the Act of 1847” means the Harbours, Docks, and Piers
Clauses Act 1847;

1964 c. xxxviii. “the Act of 1964” means the British Transport Docks
Act 1964;

- “the Act of 1966” means the British Transport Docks Act 1966; PART I
—cont.
1966 c. xxxi.
- “the Act of 1969” means the British Transport Docks Act 1969; 1969 c. xxiii.
- “the Act of 1971” means the British Transport Docks Act 1971; 1971 c. lix.
- “the Act of 1978” means the British Transport Docks Act 1978; 1978 c. xiv.
- “the Act of 1981” means the British Transport Docks Act 1981; 1981 c. xxxi.
- “the limits of deviation” means the limits of deviation shown on the deposited plan;
- “tidal work” means so much of any work authorised by this Act as is on, under or over tidal waters or tidal lands below the level of mean high-water springs;
- “the undertaking” means the undertaking of A.B. Ports as authorised from time to time;
- “vessel” has the meaning assigned to it in section 3 (Interpretation) of the Act of 1966;
- “the works” means the works authorised by Part III (Works, etc.) of this Act.

(2) All areas, directions, distances, lengths and widths stated in any description of works, powers or lands shall be construed as if the words “or thereabouts” were inserted after each such area, direction, distance, length and width.

(3) Unless the context otherwise requires, any reference in this Act to Work No. 1 shall be construed as a reference to the work as authorised by this Act.

3.—(1) The following enactments, so far as the same are applicable to the purposes and are not inconsistent with the provisions of this Act, are hereby incorporated with this Act— Incorporation
of general
Acts.

- (a) the provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and with respect to mines lying under or near the railway; 1845 c. 20.

Provided that—

- (i) for the purposes of the said incorporated provisions with respect to the temporary occupation of lands near the railway during the construction thereof, the works shall be deemed to be the railway and the centre line of Work No. 1 as shown on the deposited plan shall be deemed to be the centre of the railway and for the words “the period by the

PART I
—cont.

1923 c. 20.

special Act limited for the completion of the railway” there shall be substituted the words “the period of five years from the commencement of the construction of any of the works authorised by the special Act”;

(ii) for the purposes of the said incorporated provisions with respect to mines lying under or near the railway, the works shall be deemed to be the railway and, for the purposes of section 78 of the said Act of 1845 (as amended by the Mines (Working Facilities and Support) Act 1923) in so far as it relates to the works, the area of protection shall, as regards mines and minerals lying within 172.21 metres of the surface of the ground, be 121.92 metres and, as regards mines and minerals lying at a greater depth than 172.21 metres below the said surface, the area of protection shall be increased by 18.3 metres for every 30.48 metres or part thereof by which the mines and minerals lie deeper below the said surface than 172.21 metres;

(b) the provisions of the Act of 1847 (except sections 6 to 9, 11 to 13, 16 to 23, 25, 26, 33, 48, 49, 50, 79, 80, 84 to 90, 94, 95, 97 and 98):

Provided that—

(i) the expression “the harbour, dock, or pier” where used in the said incorporated provisions means the works;

(ii) the expression “the harbour master” where used in the said incorporated provisions means, in relation to Work No. 1, A.B. Ports’ Docks and Marine Superintendent at Plymouth;

(iii) the meaning of the word “vessel” as defined in this Act shall be substituted for the meaning assigned to it by section 3 of the Act of 1847;

(iv) section 53 of the Act of 1847 shall not be construed as requiring the harbour master to serve upon the master of a vessel a notice in writing of his directions but such directions may be given orally or otherwise communicated to such master:

Provided that a notice which is not in writing shall not be deemed to be sufficient unless it was not reasonably practicable to serve a written notice on the master of the vessel.

(2) In the construction of the enactments so incorporated with this Act, the expression “special Act” shall be read as a reference to this Act and the expression “company” shall mean A.B. Ports.

4.—(1) Part I of the Compulsory Purchase Act 1965 (except sections 4 and 27 thereof and paragraph 3 (3) of Schedule 3 thereto), in so far as it is applicable for the purposes of this Act and is not inconsistent with the provisions thereof, shall apply to the compulsory acquisition of land under this Act as it applies to a compulsory purchase to which the Acquisition of Land Act 1981 applies and as if this Act were a compulsory purchase order under the said Act of 1981.

PART I
—cont.
Application of
Part I of
Compulsory
Purchase
Act 1965.
1965 c. 56.
1981 c. 67.

(2) In section 11 (1) of the Compulsory Purchase Act 1965 (which empowers the acquiring authority to enter on and take possession of land the subject of a notice to treat after giving not less than 14 days' notice), as so applied, for the words "fourteen days" there shall be substituted the words "three months".

(3) The Lands Clauses Consolidation Act 1845 shall not apply to the acquisition of land under this Act.

1845 c. 18.

PART II

LANDS

5.—(1) Subject to the provisions of this Act, A.B. Ports may enter upon, take and use such of the lands delineated on the deposited plan and described in the deposited book of reference as it may require for the purposes of the works or for any purpose connected with or ancillary to the undertaking.

Power to
acquire lands.

(2) The powers of A.B. Ports for the compulsory acquisition of land under this section shall cease after the expiration of five years from 31st December 1984.

6.—(1) In this section references to the purchase by A.B. Ports of new rights are references to the purchase of rights to be created in favour of A.B. Ports.

Purchase of
rights over
land.

(2) A.B. Ports may for the purposes of constructing, using, maintaining, renewing or removing the works, or for the purpose of obtaining access to the works or for the purpose of doing any other thing necessary in connection with the works, purchase compulsorily such new rights as it may require over any of the lands which may be acquired under section 5 (Power to acquire lands) of this Act instead of acquiring those lands under that section.

(3) The Compulsory Purchase Act 1965, as applied by this Act, shall have effect with the modifications necessary to make it apply to the compulsory purchase of rights under subsection (2) of this section as it applies to the compulsory purchase of land so that, in appropriate contexts, references in the said Act of 1965 to land are read as referring, or as including

1965 c. 56.

PART II
—cont.

references, to the rights or to land over which the rights are or are to be exercisable, according to the requirements of the particular context.

(4) Without prejudice to the generality of subsection (3) of this section, in relation to the purchase of rights in pursuance of subsection (2) of this section—

1965 c. 56.

(a) Part I of the Compulsory Purchase Act 1965 shall have effect with the modifications specified in the Schedule to the Act of 1978 and as if for the references in that Schedule to the Act of 1978 there were substituted references to this Act;

(b) the enactments relating to compensation for the compulsory purchase of land shall apply with the necessary modifications as they apply to such compensation.

Incorporation
of provisions
relating to
lands.

7. The following provisions of the undermentioned Acts are incorporated with, and form part of this Part of, this Act:—

The Act of 1964—

Section 6 (Correction of errors in deposited plans and book of reference):

The Act of 1969—

Section 8 (Disregard of recent improvements and interests); and

Section 9 (Extinction of private rights of way).

PART III

WORKS, ETC.

Power to
make works.

8.—(1) Subject to the provisions of this Act, A.B. Ports may, in the lines and situations and within the limits of deviation shown on the deposited plan and according to the levels shown on the deposited sections, make and maintain the works hereinafter described with all necessary works and conveniences connected therewith—

In the county of Devon—

In the city of Plymouth—

(Reclamation
and wall at
Plymouth
(Millbay)
Docks.)

Work No. 1. A reclamation of the bed and filling in of the north-eastern corner of the Outer Basin at Plymouth (Millbay) Docks, comprising an area of 1.82 hectares, together with a wall bounding such area, such wall commencing at the southern end of the jetty extending into the said Outer Basin on the eastern side of the entrance to the Inner Basin and proceeding in a south-easterly direction for a distance

of 75 metres, thence proceeding in an easterly direction for a distance of 140 metres and there terminating by a junction with the quay wall of the East Quay.

PART III
—cont.

(2) Subject to the provisions of this Act, A.B. Ports may within the limits of deviation from time to time extend, enlarge, alter, replace or relay temporarily or permanently the works.

9. The works shall for all purposes form part of the undertaking.

Works to form
part of
undertaking.

10. All byelaws, rules and regulations of A.B. Ports in force at Plymouth (Millbay) Docks immediately before the passing of this Act shall, unless A.B. Ports shall otherwise determine, be deemed to apply to Work No. 1, and may be enforced by A.B. Ports accordingly until such time as new byelaws, rules or regulations relating to that work shall be made by A.B. Ports and come into operation.

Application of
byelaws of
A.B. Ports.

11.—(1) The following provisions of the undermentioned Acts are incorporated with, and form part of this Part of, this Act:—

Incorporation
of provisions
relating to
works.

The Act of 1964—

Section 30 (Fine for obstructing works):

The Act of 1966—

Section 9 (Subsidiary works);

Section 10 (Power to deviate);

Section 21 (Tidal works not to be executed without approval of Board of Trade);

Section 23 (Abatement of works abandoned or decayed);

Section 24 (Survey of tidal works); and

Section 26 (Lights on tidal works during construction):

The Act of 1969—

Section 17 (Provision against danger to navigation):

The Act of 1971—

Section 16 (Permanent lights on works):

Provided that—

(a) the provisions of the said section 9, as so incorporated, shall have effect as if in the proviso to subsection (1) the words after “those works” were omitted; and

(b) the provisions of the said sections 26, 17 and 16, as so incorporated, shall have effect as if in subsection (2) of

PART III
—*cont.*

each of those sections for the words “one hundred pounds” there were substituted “the statutory maximum”.

(2) Any reference in the said incorporated provisions to “the works” or to a “tidal work” shall be construed as a reference to “the works” or to a “tidal work” as defined in section 2 (Interpretation) of this Act.

(3) Notwithstanding anything in section 9 (Subsidiary works) of the Act of 1966, as so incorporated, A.B. Ports shall not—

(a) use any telecommunication apparatus kept installed for the purposes of a telecommunications code system; or

(b) alter any such apparatus except in accordance with and subject to the provisions of paragraph 23 of the telecommunications code.

(4) In this section “alter” and “telecommunication apparatus” have the same meanings as in paragraph 1 of Schedule 2 to the Telecommunications Act 1984, “the telecommunications code” means the code contained in the said Schedule 2, “telecommunications code system” has the same meaning as in Schedule 4 to the said Act of 1984 and “the statutory maximum” means the prescribed sum as defined in section 32 (9) of the Magistrates’ Courts Act 1980.

1984 c. 12.

1980 c. 43.

PART IV

PROTECTIVE PROVISIONS

Crown rights. 12. The provisions of section 30 (Crown rights) of the Act of 1966 are incorporated with, and form part of this Part of, this Act.

For protection of South West Water Authority. 13. For the protection of the South West Water Authority (in this section referred to as “the authority”) the following provisions shall, unless otherwise agreed in writing between A.B. Ports and the authority, apply and have effect:—

(1) In this section—

“authorised work” means Work No. 1 and any extension, enlargement, alteration, replacement or relaying thereof authorised by subsection (2) of section 8 (Power to make works) of this Act and any subsidiary work carried out under section 9 (Subsidiary works) of the Act of 1966, as incorporated with this Act;

“the tanks” means the two low level tidal storage tanks for sewerage in Clyde Quay and East Quay adjacent to Work No. 1:

- (2) (a) A.B. Ports shall take all such steps as are necessary to protect the tanks from interference or damage by vehicles, plant and machinery engaged for the purposes of, or in connection with, the authorised work;
- (b) If the authority have reasonable grounds for believing that the tanks are likely to be interfered with or damaged as aforesaid, they may carry out such protective works as may be agreed between them and A.B. Ports or, in default of agreement, as may be settled by arbitration and the authority may recover from A.B. Ports costs reasonably incurred in carrying out such works:
- (3) Any difference arising between A.B. Ports and the authority under this section shall be settled by arbitration.

PART V

MISCELLANEOUS AND GENERAL

14.—(1) In this section “Class XII development” means Planning development authorised by Article 3 of, and Class XII in permission. Schedule 1 to, the Town and Country Planning General Development Order 1977 (which permit development S.I. 1977/289. authorised by private Act designating specifically both the nature of the development thereby authorised and the land on which it may be carried out).

(2) Subject to the provisions of subsection (3) of this section, in its application to development authorised by this Act the planning permission granted for Class XII development shall have effect as if the authority to develop given by this Act were limited to development begun within 10 years after the passing of this Act.

(3) Subsection (2) of this section shall not apply to the carrying out of any development consisting of the alteration, maintenance or repair of works or the substitution of new works therefor.

15. Where under this Act any difference (other than a Arbitration. difference to which the provisions of the Compulsory Purchase Act 1965, as applied by this Act, apply) is to be referred to or 1965 c. 56. settled by arbitration, then, unless otherwise provided, such difference shall be referred to and settled by a single arbitrator to be agreed between the parties or, failing agreement, to be appointed, on the application of either party (after notice in

PART V
—cont.

writing to the other), by the President of the Institution of Civil Engineers.

Costs of Act.

16. All costs, charges and expenses of, and incidental to, the preparing for, obtaining and passing of this Act, or otherwise in relation thereto, shall be paid by A.B. Ports and may in whole or in part be defrayed out of revenue.

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